

**SUBSTITUTE FOR
HOUSE BILL NO. 4904**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 18114 (MCL 333.18114), as added by 2019 PA 96;
and to repeal acts and parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 18114. (1) ~~Except as otherwise provided in subsection~~
2 ~~(3), the~~ **The** department may grant relicensure as a licensed
3 professional counselor or limited licensed counselor to an
4 individual who is applying for relicensure less than 3 years after
5 the expiration date of ~~his or her~~ **the individual's** license, if the
6 individual ~~submits~~ **complies with both of the following:**

7 **(a) Submits** to the department a completed application on a
8 form provided by the department together with payment of the fees



described in section 16201(3). ~~, and he or she complies with both of the following:~~

~~(a) Submits with his or her application a professional disclosure statement that meets the requirements of section 18113.~~

(b) If the individual holds or has held a license as a licensed professional counselor or limited licensed counselor in another state, ensures that the licensing agency of each out-of-state license verifies all of the following on a form provided by the department:

(i) That disciplinary proceedings are not pending against the individual at the time of ~~his or her~~ **the individual's** application for relicensure.

(ii) That if sanctions have been imposed against the individual, the sanctions are not in force at the time of ~~his or her~~ **the individual's** application for relicensure.

(2) ~~Except as otherwise provided in subsection (3), the~~ **The** department may grant relicensure as a licensed professional counselor or limited licensed counselor to an individual who is applying for relicensure more than 3 years after the expiration date of ~~his or her~~ **the individual's** license, if the individual submits to the department a completed application on a form provided by the department together with payment of the fees described in section 16201(4), ~~and a professional disclosure statement that meets the requirements of section 18113, and he or she~~ **the individual** complies with 1 of the following:

(a) Takes or retakes and passes 1 of the following:

(i) The national counselor examination developed by the National Board for Certified Counselors.

(ii) The certification examination given by the Commission on



1 Rehabilitation Counselor Certification.

2 (iii) An examination that the department determines is
3 equivalent to an examination described in subparagraph (i) or (ii).

4 (b) Demonstrates to the satisfaction of the department that ~~he~~
5 ~~or she~~ **the individual** meets the requirements for certification
6 issued by the National Board for Certified Counselors, the
7 Commission on Rehabilitation Counselor Certification, or an
8 equivalent program as determined by the department.

9 ~~(3) The department may grant relicensure as a licensed~~
10 ~~professional counselor or limited licensed counselor to an~~
11 ~~individual who received a master's or doctoral degree in counseling~~
12 ~~or student personnel work before October 1, 1991, and completed 2~~
13 ~~years of professional experience before October 1, 1993, if the~~
14 ~~individual submits to the department a completed application on a~~
15 ~~form provided by the department together with payment of the~~
16 ~~applicable fees described in section 16201(3) or (4) and he or she~~
17 ~~complies with 1 of the following:~~

18 ~~(a) Submits with his or her application a professional~~
19 ~~disclosure statement that meets the requirements of section 18113.~~

20 ~~(b) If the individual holds or has held a license as a~~
21 ~~licensed professional counselor or limited licensed counselor in~~
22 ~~another state, ensures that the licensing agency of each out-of-~~
23 ~~state license verifies all of the following on a form provided by~~
24 ~~the department:~~

25 ~~(i) That disciplinary proceedings are not pending against the~~
26 ~~individual at the time of his or her application for relicensure.~~

27 ~~(ii) That if sanctions have been imposed against the~~
28 ~~individual, the sanctions are not in force at the time of his or~~
29 ~~her application for relicensure.~~



1 Enacting section 1. Section 18113 of the public health code,
2 1978 PA 368, MCL 333.18113, is repealed.